

OFFICE OF THE SECRETARY

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November 15, 2021

The Honorable Dale S. Fischer
Judge of the Superior Court
County of Los Angeles
210 West Temple Street
Los Angeles, CA 90012-3210

Re: Mohammed Shah
CDCR No: T26320
Case No: BA206956
Date of Sentence: July 9, 2001

Dear Honorable Dale S. Fischer:

The purpose of this letter is to provide the court with the authority to resentence inmate Mohammed Shah, T26320, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1), based upon his exceptional conduct while incarcerated. PC Section 1170, Subdivision (d)(1) provides that upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

As the Secretary of CDCR, I take my obligation to public safety very seriously and choose only to make exceptional conduct referrals when an inmate's behavior, while incarcerated, demonstrates a sustained compliance with departmental rules, regulations and requirements as well as prolonged participation in rehabilitative programming. These inmates have not only exhibited exceptional conduct through their ability to obey rules and regulations, but have also demonstrated a commitment to their rehabilitation through voluntary participation in self-help programs.

Inmate Shah has received three Rules Violation Reports since being received to the California Department of Corrections and Rehabilitation (CDCR) on August 6, 2001, however, he has remained disciplinary free since January of 2004. Inmate Shah is currently assigned as a Clothing Clerk and his current supervisor notes that he shows tremendous effort while at work, leadership ability, and has good communication skills. Inmate Shah also participates in Lifer Activity Group and Criminal and Gang Members Anonymous. Inmate Shah has received numerous certificates and two laudatory chronos from group sponsors acknowledging his

commitment and dedication to these self-awareness and improvement groups. Inmate Shah has also received eight laudatory chronos from Correctional Staff and 22 laudatory chronos from Institutional staff commending inmate Shah for his positive programming and work ethic. Inmate Shah met the standards of the General Educational Development and received his High School Equivalency Certificate at Ironwood State Prison. Inmate Shah has also received an Associate of Science Degree and Certificates of Career Preparation from Palo Verde College.

Having reviewed the enclosed documentation it appears that inmate Shah's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d)(1), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,



KATHLEEN ALLISON
Secretary

Enclosures:

Abstract of Judgment

Minute Order

Court Information-Charging Documents

Cumulative Case Summary

cc: Los Angeles County District Attorney's Office
Los Angeles County Public Defender's Office